

HOUSE No. 2625

The Commonwealth of Massachusetts

PRESENTED BY:

Danielle W. Gregoire

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the expansion of the state DNA database.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Danielle W. Gregoire</i>	<i>4th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 2625

By Representative Gregoire of Marlborough, a petition (accompanied by bill, House, No. 2625) of Danielle W. Gregoire relative to the expansion of the state DNA database. Public Safety and Homeland Security.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 2336 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the expansion of the state DNA database.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 3 of chapter 22E of the General Laws, as appearing in the 2022
2 official edition, is hereby amended by striking the text thereof, and inserting in place thereof
3 following: -

4 “Any person who is arrested by virtue of process, or is taken into custody by an officer
5 and charged with the commission of a felony, and who upon arrest has been arraigned pursuant
6 to the applicable court rules under the Massachusetts Rules of Criminal Procedure, shall submit a
7 DNA sample to the department. The sample shall be collected by a person authorized under
8 section 4 of this chapter subsequent to arraignment, in accordance with regulations or procedures
9 established by the director. The results of such sample shall be made part of the state DNA
10 database.

11 Section 2. Section 12 of chapter 22E of the General Laws, as appearing in the 2004
12 official edition, is hereby amended in line 7 by striking out the words “\$1,000” and inserting in
13 its place thereof the following words:- \$2,000. Said section is further amended in line 8 by
14 striking out the words “six months” and inserting in place thereof the following words: - one
15 year.

16 Section 3. Section 13 of chapter 22E of the General Laws, as appearing in the 2004
17 official edition, is hereby amended by striking in line 4 the words “\$1,000” and inserting in its
18 place thereof the following words:- \$2,000. Said section is further amended in line 5 by striking
19 out the words “six months” and inserting in place thereof the following words: - one year.

20 Section 4. Section 15 of chapter 22E of the General Laws, as appearing in the 2004
21 official edition, is hereby amended in line 3 by adding after the word “expunged” the following:-

22 “ if the original offense upon which the collection of DNA is based does not result in a
23 conviction; or”